

CV-25-000998 ALBERTO, MONICA vs GARCIA, RUBEN – a) Plaintiff's Motion to Compel Responses from Defendant to Form Interrogatories and for Monetary Sanctions Against Defendant for Misuse of the Discovery Process – DENIED. b) Plaintiff's Motion to Compel Responses from Defendant to Requests for Production of Documents and for Monetary Sanctions Against Defendant for Misuse of the Discovery Process – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: a) The Court notes that the instant motion is brought under the wrong Code section, as Code Civ. Proc. § 2030.290 addresses the situation where no responses are received, and Plaintiff concedes that timely verified responses were served on 2-10-26. Therefore, it appears that the motion should have been brought pursuant to Code Civ. Proc. § 2030.300, and Plaintiff's request for an order finding objections waived and/or entering Defendant's default is improper under the circumstances. The Court further notes that the dispute herein has been rendered MOOT by Defendant's service of verified amended responses on 4-8-26. b) The Court notes that the instant motion is brought under the wrong Code section, as Code Civ. Proc. § 2031.300 addresses the situation where no responses are received, and Plaintiff concedes that timely verified responses were served on 2-10-26. Therefore, it appears that the motion should have been brought pursuant to Code Civ. Proc. § 2031.310, and Plaintiff's request for an order finding objections waived and/or entering Defendant's default is improper under the circumstances. The Court further notes that the dispute herein has been rendered MOOT by Defendant's service of verified amended responses on 4-8-26.

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